



File No.: EXP202207932

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 20, 2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD) to investigate RAMONA FILMS, S.L. with NIF B87763405 (hereinafter, RAMONA) in relation to the following facts:

In file E/02426/2021 and dated 03/11/2021, the Director of the Spanish Agency for Data Protection urged the Data Inspection to initiate ex officio preliminary investigation proceedings concerning RAMONA FILMS, S.L., as the responsible party for the website ***URL.1, to analyze compliance with data protection regulations in relation to minors under fourteen years of age, considering the sensitivity of personal data related to browsing that could be processed on these sites for user profiling, related to sexual life and orientation.

On 03/13/21 and 05/28/21, this Agency sent RAMONA FILMS, S.L. two letters requesting information on the following aspects: the management of risks associated with processing activities that could result in unauthorized access by a minor to the content offered; the data protection impact assessment regarding risk analysis; technical and organizational measures implemented in their entity that limit access for minors to the content offered; restrictions for minors to access such content; Privacy Policy and its public location; technical and organizational measures to be taken in their entity in the event of an improper access by a minor to their content; technical and organizational measures that reflect the protection of personal data and the processes for verifying and evaluating the effectiveness of the measures and clarification on whether they carry out profiling of the personal data of those who access their content.

The investigated entity did not respond to any of the information requests made.

As a consequence of the preliminary investigation proceedings and the conclusions obtained therein, sanctioning procedure PS/00483/2021 was initiated against RAMONA FILMS, S.L. for violation of Article 13 of the General Regulation.

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of Data Protection (GDPR), for collecting personal data from users of its owned websites without having adapted it to the current regulations on data protection and to Article 22.2 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), regarding the irregularities detected in the "Cookie Policy" of the website.

In March 2022, sanctioning procedure PS/00098/2022 was initiated for failing to respond to the information requests notified within the framework of E/02426/2021. In response to the deadline for allegations granted in this sanctioning procedure, the entity proceeded to submit the requested information in the aforementioned requests, dated March 13, 2021, and May 28, 2021.

An analysis and assessment of this information was carried out by the Inspection area of this Agency to determine whether the provided information is sufficient to establish the need to open a new investigation, or if additional clarification is needed. It was found that there are contradictions in the statements of the investigated entity regarding the absence of personal data processing, as there are indications of possible storage of subscriber data in its database to verify, among other things, the credentials of users logging in.

Furthermore, the absence of additional controls to verify the age of website visitors was noted, beyond

the simple activation by the user of a button indicating that they are of legal age in an informational window to access the website freely.

Finally, regarding the possible profiling of special categories of data, despite the entity's claim that this is not carried out, there are different cookies for which no information is provided, making it impossible to know what type of information is obtained from the user navigating their website.

In relation to the above, the need to analyze the implications regarding personal data protection of the obtained information required the opening of an investigation aimed at clarifying the facts and their scope.

SECOND: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On September 6, 2022, information was requested from RAMONA regarding its organization and the website portal ***URL.1. The information request was made in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of the
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Public Administrations (hereinafter, LPACAP), was received on September 16, 2022, as stated in the acknowledgment of receipt that is part of the file.

On September 22, 2022, a written request was received from RAMONA FILMS SL requesting an extension of the deadline to respond to the previous requirement, which was granted.

In the written response to said requirement, it is stated verbatim that:

"The website ***URL.1, hereinafter "the website," requests the user to confirm that they are over 18 years old. To avoid the use of cookies, a Javascript property called sessionStorage has been used. This variable only stores the information provided by the user during the user session, not storing any information on the server where the website is hosted. Therefore, each new connection to ***URL.1 requires that this information be provided again."

They also state that due to an error, certain cookies were being installed for which no information was provided, and that this error has been corrected by the technicians.

They acknowledge another existing error on the website whereby cookies were being installed on the user's device even though the user had rejected their installation; as the technicians conducted several tests at the beginning of the operation of the cookie panel and everything was functioning correctly, but due to one of the latest updates made to the website to enhance the user experience, the blocking of those cookies not accepted by the user was not interpreted correctly. They affirm that the code has been corrected and tests have been conducted.

Regarding the cookies that store the user's location, they mention that there are two that serve this purpose: cookies-country (which only stores the country) and cookies-region (which stores the user's region to offer them webcams configured for that region); however, this location is not precise.

Concerning the contact form available on the website, they state that the data collected is stored in a database managed by RAMONA and hosted by the hosting provider COMVIVE (***URL.2) located in Spain, with the following field structure: name, city, state, country, phone, age, email, image_1, image_2, image_3. However, the form only requests the fields name and email, so the rest of the fields are not obtained from it.

Regarding the request for clarification on why there was an acceptance checkbox next to the link "general contracting conditions" in the contact form (***URL.3), which led to a second page that did not provide information on data protection, they affirm that it was again an error and that it has now been corrected.

In relation to the data received by the payment platform ***PLATAFORMA.1 when a customer subscribes to the service, they state that the company CCBILL EU Ltd, based in Malta, provides RAMONA with the online payment service for

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subscribers. When a customer subscribes through this company, the data that it provides back is stored in the database table named transactions with the following field structure: offer_name, amount, currency, user_id, user_pwd, email, ip, card_holder (among which are the user identifier, their email, the IP address, and the cardholder of the card used for the purchase). Once the payment transaction is successfully completed, the fields update_at, paid_until, last_subscription, renewable, last_payment_method in the users table are also updated, which also contains the fields name, email, and password.

Regarding the contribution of the data processing agreement with CCBILL EU Ltd (the company that enables the subscription form for the services of the portal putalocura.com), they state that:

- The service contract with the company CCBILL EU Ltd dates back to 2004.
- The selection of this provider is made after verifying that they comply with the current data protection regulations.
- After the entry into force of the GDPR, the data controller RAMONA sends the corresponding contract to CCBILL for signature, but CCBILL itself responded by referring RAMONA to the privacy policy, claiming the impossibility of managing such contracts due to the large number of clients they have. RAMONA analyzed the risk of non-compliance and considered it low, so they decided to continue working with the company CCBILL.

Finally, a list of domains under the responsibility of RAMONA is provided. In the context of these preliminary investigative actions and given that in the Privacy Policy of the web domain ***URL.4, PROMOCIONESWEB 2016 (hereinafter, PROMOCIONES) appears as the data controller, on November 7, 2022, a request for information is made to them.

The information request, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received that same day as evidenced by the acknowledgment of receipt in the file.

In response to this request, they state that they are responsible for the processing of personal data handled by the web portal ***URL.4, although it is also stated that the ownership of this web domain belongs to RAMONA FILMS SL.

To this response document, they attach the Record of Processing Activities, as well as a document titled "Impact Assessment Template related to Data Protection" with the logo of the Catalan Data Protection Authority (ADPCAT).

THIRD: On February 17, 2023, a new request for information is made to the data controller RAMONA in order to know the data processing agreement with the hosting provider where they are hosted.

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both the database and the portal ***URL.1, as well as the fields of the database stored when a user subscribes to a service.

Upon requesting an extension of the granted deadline to comply with this requirement, it is noted that on March 6, 2023, a response to the information request was received in which the data controller states that the website portal ***URL.1 shares a hosting provider (Comvive Servidores S.L.) with the portals ***URL.5 and ***URL.6.

The contract for the service with the hosting provider Comvive Servidores S.L. is attached, as well as the Record of Activities of Processing, and they affirm that this record has been slightly modified compared to the one submitted to this Agency in the letter dated March 30, 2022.

FOURTH: Upon concluding the investigative actions, it is determined:

1. By the assertion of the data controller himself, Mr. A.A.A. (***EMAIL.1) acts as the Data Protection

Officer for this company. This DPO is not registered in the systems of this Agency.

2. The data controller RAMONA FILMS S.L. certifies the existence of a processing contract with the hosting provider COMVIVE SERVIDORES SL; from the analysis of this contract, it is concluded:

a. Regarding the parties signing the contract, it specifies: "On one side, Daniel Salamanca Domingue, with DNI 28495399D, as the legal representative of the company Comvive Servidores S.L., with CIF B91315804 and with address at C/ ***DIRECCIÓN.1, hereinafter referred to as the PROCESSOR, and on the other side, A.A.A., with DNI ***NIF.1, as the Data Protection Officer of the company RAMONA FILMS S.L.U, with CIF B87763405 and with address at ***DIRECCIÓN.2, hereinafter referred to as the CONTROLLER."

b. The date of signing is February 21, 2023.

c. The content of the contract does not specify what the processing consists of, appearing a section with a list of possible processing operations along with a checkbox to mark those that correspond in the contract; however, all have been left unmarked.

d. The types of data affected by the contract and the categories of data subjects are not specified.

e. Regarding the duration of the contract, it specifies, "this agreement has an indefinite duration. It will be terminated upon the closure of the contract for any reason..."

3. Regarding the website portal ***URL.1 for which the data controller is responsible:

a. The mechanism used to declare the age of the user accessing is a pop-up window that appears upon accessing the page with a button and the text "I am over 18 years old – enter putalocura.com"; when the button is pressed by the user, this action is saved in a JavaScript variable called sessionstorage that does not leave the user's device and remains there as long as the browser tab being used is not closed.

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Using this, the data controller states the following:

"This variable only retains the information provided by the interested party during the user session, not storing any information on the server where the website is hosted. Therefore, each new connection to ***URL.1 requires that this information be provided again."

b. A method has been detected to bypass this age declaration mechanism that allows access to the portal's content without declaring the user's majority age. To do this, one must click on the link in the cookie information window that appears on the first access, "You can obtain more information HERE," which takes you to a new page where the cookie policy content is displayed. Subsequently, a zoom reduction of the browser must be made to view the page with a zoom value lower than 100%, allowing you to see all the menus at the top of the web portal and access the multiple sections of the website without having declared the majority age.

c. When entering the direct URL of any of the internal categories used by the web portal to classify pornographic content (for example, ***URL.7, ***URL.8, or any other category) in the web browser, the mechanism for obtaining the user's age declaration is not displayed, allowing free access to pornographic content.

d. The data controller RAMONA FILMS SL states and acknowledges that, as of the date of receiving our information request (September 16, 2022), cookies were being installed for which no information was provided to the user. They also state that cookies were being installed despite the user confirming that they did not wish to install them, using the cookie settings panel enabled on the portal. They claim that the above was occurring due to a technical error and that it has been corrected immediately, carrying out the relevant tests. The present inspector verifies that the above has already been corrected.

e. It has been confirmed that two cookies are used to obtain the user's location; these store information about the country and region (for example, Spain/Madrid) of origin, without obtaining a precise location of the user. According to the cookie policy, the purpose of these approximate location cookies is to offer the user webcams according to their region. Cookies are not used to obtain the user's IP address;

however, this data is processed and stored for all users who complete the subscription form for the portal's services.

f. It has been confirmed that RAMONA FILMS SL processes the following personal data of the user accessing the services offered by the portal: name and surname, email, username and encrypted password, IP address (obtained from subscribers who complete the payment form for subscription to the services), cardholder of the payment card used, postal code, country. The data is stored by the data controller RAMONA FILMS SL in a database provided by the hosting provider COMVIVE SERVIDORES SL. This hosting provider stores the data in Spain.

g. The existence of a contact form on the portal has been confirmed, which requests the personal data of the user's name and email without obtaining informed consent. Following our initial information request, the data controller states that this is an error and that it has been corrected.

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corrected by enabling an acceptance checkbox that the user must accept, with a link to the privacy policy where the purpose of processing and the rights of data protection are informed.

h. It has been established that RAMONA FILMS SL uses the company CCBILL EU Ltd, based in Malta, to manage user subscriptions and act as a payment gateway for content viewing services. It has also been established that there is no data processing agreement with this third party. RAMONA FILMS SL claims that after the entry into force of the GDPR, they contacted this company to attempt to sign a data processing agreement, and that this company responded by referring them to the privacy policy and stating that they could not sign such contracts. They assert that RAMONA analyzed the risk of non-compliance and considered it low, which is why they decided to continue working with this provider.

i. After accessing the website and accepting the age declaration, users have access to pornographic content without the need to subscribe to the service.

4. Regarding the website ***URL.2 for which it is responsible for processing:

It has been established that it uses a pop-up window as a mechanism to obtain the user's age declaration; this window contains an acceptance checkbox that gives the option to "remember the decision" on the user's device. It uses the cookie "age_gate" to store the user's declaration, a session cookie that remains on the user's device until the browser is closed. However, when the user activates the "remember decision" option, this cookie has a storage duration of 365 days, remaining on the user's device for the entire time even when the browser is closed.

5. Regarding the website ***URL.3 for which it is responsible for processing:

a. It has been established that a pop-up window is used with an informational text containing the phrase in English "By using the site, you acknowledge you are at least 18 years old," and the buttons "Continue" and "Exit" through which the user declares to be of legal age. The cookie "kt_agecheck" is used to store the user's declaration; this cookie always has a duration of 365 days, so it remains stored on the user's device for the entire time regardless of whether the browser is closed (unless expressly deleted by the user using the options provided by the browser).

b. Upon accessing the portal, a pop-up window is displayed to manage the installation of cookies by the user, showing three different categories: technical cookies (which are always installed), analytical cookies (which are installed at the user's request), and advertising cookies (which are installed at the user's request). However, among the cookies that are always installed, there is the cookie "kt_ips," which collects and stores the IP address of the user accessing the portal.

c. There is a contact form for those who wish to work as porn actors in the portal's gay productions; this form requires acceptance of the privacy policy, activating an acceptance checkbox.

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where it is indicated that the legitimate basis for the processing of the collected data is the user's own consent; however, among the information collected, there are data that reveal the user's sexual orientation. Specifically, the following data is requested verbatim: name, age, email, phone, city, country, gay role (active/passive/versatile), penis size, photographs.

d. After accessing the website and accepting the age declaration, access is granted to pornographic content without the need to subscribe to the service.

6. Regarding the website ***URL.4 for which it is responsible for processing:

a. It does not contain pornographic material, and its purpose is the sale of books and comics.

b. There is a form that allows the user to create an account on the portal and collects personal data (name, surname, email, and password) without obtaining the informed consent of the user.

c. When processing the purchase of any item, it shows a link to the privacy policy that is not adapted to the new regulations and refers to Law 15/1999.

FIFTH: According to the report collected from the AXESOR tool, the limited company RAMONA FILMS SL has a share capital of 4,600 euros and sales volume of 441,078 euros; its activity belongs to the area of "film and video productions," and the last submitted financial year dates back to 2020.

SIXTH: On July 11, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party:

- For the alleged infringement of Article 6.1.a) of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 50,000.00 euros.

- For the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 2,000.00 euros.

- For the alleged infringement of Article 28.3 of the GDPR, classified in Article 83.4 of said regulation, for not complying with the minimum content required in the data processing agreement signed with the hosting provider COMVIVE SERVIDORES SL., an administrative fine of 40,000.00 euros.

- For the alleged infringement of Article 28.3 of the GDPR, classified in Article 83.4 of said regulation, for the absence of a data processing agreement with CCBILL EU Ltd., an administrative fine of 50,000.00 euros.

- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of said regulation, an administrative fine of 60,000.00 euros.

- For the alleged infringement of Article 37 of the GDPR, classified in Article 83.4 of said regulation, an administrative fine of 10,000.00 euros.

- For the alleged infringement of Article 38.6 of the GDPR, classified in Article 83.4 of said regulation, an administrative fine of 15,000.00 euros.

- For the alleged infringement of Article 22.2 of the LSSI, classified in Article 38.4.g) of said regulation, an administrative fine of 15,000.00 euros.

Furthermore, if the infringements are confirmed, among others, it would be appropriate to impose the corrective measure described in Article 58.2.d) of the GDPR and order RAMONA to, at

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within a month, establish appropriate security measures to adapt the age verification systems or mechanisms to legal requirements, preventing similar situations from occurring in the future.

SEVENTH: On July 12, 2023, an extension of the legally established deadline to submit allegations regarding the notified initiation agreement was requested, which was granted on July 17 of the same year.

EIGHTH: On August 2, 2023, the Spanish Agency for Data Protection received a written communication from the respondent party in which they accepted the imposed sanction, and therefore, abstained from making allegations, requesting the installment payment of the sanction. The respondent party stated in that communication that they were engaged in making the requested changes, but that, for the effective implementation of all of them, especially considering the dates we

were in, they would need a few additional weeks. Specifically, the difficulties encountered in integrating the solutions developed by third parties for age verification were estimated to require 8 to 10 weeks.

NINTH: On August 10, 2023, this Agency reminded the respondent party that at this stage of the sanctioning procedure, Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations does not contemplate the possibility of splitting the payment of monetary sanctions. Consequently, and given the acceptance of the imposed sanction, for the two reductions to be applied and to conclude the sanctioning procedure, the respondent party should pay in a single payment the amount of €145,200.00 (one hundred forty-five thousand two hundred euros).

TENTH: The response to the request for installment payment of the sanction was notified on August 10, and having granted a period of 10 days to submit allegations or proceed with the corresponding single payment, an extension of that period was requested on August 23, 2023. The extension of the deadline granted to submit allegations was granted and notified on August 30, 2023.

ELEVENTH: On October 16, 2023, RAMONA FILMS S.L. was notified in writing requesting CLARIFICATION and EXPRESS MANIFESTATION, within a period of 10 days, counted from the day following the notification of this communication, on whether they desist or renounce any action or administrative appeal against the imposed sanction, for the purpose of applying the 20% reduction of Article 85 of the aforementioned Law. It was noted that if this period elapsed without RAMONA FILMS, S.L. presenting any manifestation, the procedure would continue, without the right to the application of the aforementioned reduction, for not having fulfilled the legally established requirements to obtain the right to it.

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TWELFTH: Notified on October 6, 2023, this request for clarification in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), on October 29, 2023, a written response was received at the Spanish Agency for Data Protection in which they EXPRESSLY RENOUNCED all action or administrative appeal against the imposed sanction, requesting the application of the 20% reduction on the sanction.

PROVEN FACTS

FIRST: It has been established in the file that RAMONA is responsible for processing on the following websites:

- ***URL.1
- ***URL.2
- ***URL.3
- ***URL.4

SECOND: It has been accredited that RAMONA processes the following personal data of the user accessing the services offered by the portal: name and surname, email, username and encrypted password, IP address, cardholder of the card used for payment, postal code, country, sexual orientation.

THIRD: It is recorded in the file that on the website ***URL.1 the mechanism used to declare the age of the user accessing is a pop-up window that appears upon accessing the page with a button and the text "I am over 18 years old – enter putalocura.com"; when the user clicks the button, this action is saved in a JavaScript variable called sessionStorage that does not leave the user's device and remains there as long as the tab of the browser being used is not closed. It has also been established that on this website there is a way to bypass the age declaration mechanism, allowing access to the portal's content without declaring the user's majority age; to do this, one must click on the link in the cookie information window that appears on the first access "You can obtain more information HERE," which takes you to a new page where the cookie policy content is displayed. Subsequently, one must zoom out the browser to view the page with a zoom value lower than 100%, which allows viewing all the

menus at the top of the website and accessing multiple sections of the site without having declared the majority age. It is recorded in the file that, after accessing the website and accepting the age declaration, access to pornographic content is granted without the need to subscribe to the service. FOURTH: It has been established that the website ***URL.1 for which RAMONA is responsible uses two cookies to obtain the location of the user.

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user, these store information about the country and region (for example, Spain/Madrid) of origin without obtaining a precise location of the user.

FIFTH: It is recorded in the file that the website portal ***URL.2 has a contact form for those who wish to work as porn actors in the gay productions of the portal; this form requires acceptance of the privacy policy, activating a checkbox where it is indicated that the legitimate basis for the processing of the collected data is the user's own consent.

There is no record of the revocation of consent in the privacy policy of said website portal.

SIXTH: It is recorded in the file that upon accessing the website portal ***URL.2, a pop-up window is displayed to manage the installation of cookies by the user, showing three distinct categories: technical cookies (which are always installed), analytical cookies (which are installed at the user's request), and advertising cookies (which are installed at the user's request). However, among the cookies that are always installed, there is the cookie "kt_ips" which collects and stores the IP address of the user accessing the portal.

SEVENTH: There is no record of the designation of a Data Protection Officer in the systems of this Spanish Agency for Data Protection.

EIGHTH: The responsible party RAMONA FILMS S.L certifies in the file the existence of a data processing agreement with the hosting provider COMVIVE SERVIDORES SL.

In said contract, it specifies: "On one side, B.B.B. with DNI ***NIF.2, as the legal representative of the company Comvive Servidores S.L., with CIF B91315804 and with address at C/ ***DIRECCIÓN.2, hereinafter referred to as the DATA PROCESSOR, and on the other side, A.A.A., with DNI ***NIF.1, as the Data Protection Officer of the company RAMONA FILMS S.L.U, with CIF B87763405 and with address at ***DIRECCIÓN.1, hereinafter referred to as the DATA CONTROLLER."

The date of signing of said contract is February 21, 2023.

The content of the contract does not specify what the processing consists of, appearing a section with a list of possible processing operations along with a checkbox to mark those that correspond in the contract; however, all have been left unmarked.

The types of data affected by the contract and the categories of interested parties are not specified.

Regarding the duration of the contract, it is specified that "this agreement has an indefinite duration. It will be considered terminated upon the closure of the contract for whatever reason...".

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NINTH: There is no record in the file of the data processing agreement with CCBILL EU Ltd (the company that enables the form for subscription to the services of the portal putalocura.com).

TENTH: It is recorded in the file that RAMONA accepts the imposed sanction and waives any action or appeal in the administrative route against it.

LEGAL GROUNDS

I

Competence

- Regarding the GDPR:

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, by virtue of the powers granted by Article 58.2 of the GDPR and Articles 47, 64.2, and 68.1 of the LOPDGDD.

- Regarding the Cookie Policy:

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions established in Article 43.1, second paragraph, of the LSSI Law.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 of the GDPR, under the heading "Definitions," provides the following:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission,

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session, dissemination, or any other form of enabling access, comparison, or interconnection, limitation, suppression, or destruction."

7) "data controller" or "controller": the natural or legal person, authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union law or the law of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by Union law or the law of the Member States."

In this case, it has been established that RAMONA processes the following personal data of the user accessing the services offered by the portal: first name and last name, email, username and encrypted password, IP address, cardholder of the payment card used, postal code, country, sexual orientation... among others.

The data is stored by RAMONA in a database provided by the hosting provider COMVIVE SERVIDORES SL. This hosting provider stores the data in Spain.

RAMONA is the data controller for the aforementioned data processing, as it determines the purpose and means of the processing carried out for the purposes indicated in its record of processing activities, in accordance with the definition in Article 4.7 of the GDPR.

III

Obtaining personal data and lack of user consent.

Article 6 of the GDPR establishes that the processing of personal data obtained from users will only be lawful if at least one of the conditions indicated in its first paragraph is met, among which is, in its paragraph a): "that the data subject has given consent to the processing of their personal data for one or more specific purposes (...)"

Regarding the processing of data based on the consent of the data subject, Article 7 of the GDPR indicates that the data controller must be able to demonstrate that the data subject consented to the processing of their personal data. If consent is given in the context of a written declaration that also refers to other matters, it must be ensured that the request for consent is clearly distinguishable from

other matters and presented in an intelligible manner, in an easily accessible form, and using clear and plain language. Additionally, the data subject must be provided with further information, including, among others, the categories of data to be processed, the purposes for which consent is requested, and the right to withdraw consent at any time.

Regarding the manner of obtaining the consent of the data subject for the processing in question, Recital 32 of the GDPR states that consent “must be given by a clear affirmative act that reflects the data subject's free, specific, informed, and unambiguous indication of their wishes to accept the processing of personal data concerning them” and that “silence, pre-ticked boxes, or inactivity...”

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“must not constitute consent.” Furthermore, it is required that consent be granted “for all processing activities carried out for the same or similar purposes. When processing has multiple purposes, consent must be given for all of them.” Finally, it establishes that “if the consent of the data subject is to be given as a result of a request made by electronic means, the request must be clear, concise, and not unduly disrupt the use of the service for which it is provided.”

For its part, Article 12.1 of the aforementioned GDPR establishes the requirements that the information provided by the data controller to the data subjects when requesting consent must meet, stating: “1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 related to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means (...).”

Articles 13 and 14 of the GDPR detail the information that must be provided to the data subject when the data is collected directly from them (Art. 13) or through other means (Art. 14). In any case, the obligation to inform the data subjects about the circumstances related to the processing of their data falls on the data controller: a) If the data is obtained directly from the data subject, the information must be made available at the time the data is requested, prior to collection or registration; and b) if it is not obtained from the data subject, they must be informed within one month of obtaining the personal data, or before or at the first communication with the data subject, or before the data (if applicable) has been communicated to other recipients.

In the case at hand, when the processing of personal data is carried out through a website, the “Privacy Policy” of the page is the document through which the website owner must inform their clients and users about the management of the personal data that will be collected while browsing the site. Therefore, before the user provides their personal data and gives their consent to the processing of this data, they must be provided with simple and direct access to the website’s “Privacy Policy.”

Regarding the method of obtaining the consent of the data subject, the request must be made through a clear and voluntary affirmative act, providing a blank checkbox or a similar mechanism, where the user must explicitly mark or click to accept the “Privacy Policy,” using phrases such as: “I have read and accept the terms of the privacy policy” or equivalent.

In the present case, regarding the processing of personal data carried out on the websites, the following anomaly is noted in the preliminary investigation report:

- “Web portal ***URL.1 for which the data controller is responsible:

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- It has been established that there is a contact form on the portal ***URL.1 that requests the personal

data of the user, namely name and email, without obtaining informed consent. Following our initial request for information, the responsible party claims that this was an error and that it has been rectified by enabling an acceptance checkbox that the user must agree to, along with a link to the privacy policy where the purpose of processing and the rights of data protection are explained.

Consequently, the data controller was able to obtain personal data from users without having previously obtained their consent for the processing of such data through a clear and voluntary affirmative act; which constitutes a violation of Article 6.1 of the aforementioned GDPR.

IV

Classification of the infringement of Article 6 of the GDPR

The aforementioned infringement of Article 6 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.(...)"

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V

Sanction for the infringement of Article 6 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is necessary to assess the sanction to be imposed in accordance with the following criteria established in Article 83.3 of the GDPR:

As aggravating factors:

- b) the intentionality or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard, in the terms provided in the (...).

- e) any previous infringement committed by the data controller or processor;

The claimed party has been sanctioned previously for non-compliance with the GDPR.

In the context of sanctioning procedure PS/00483/2021, a resolution was issued on March 1, 2022, for voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (recognition of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for the infringement of Article 13 of the General Data Protection

Regulation (GDPR), for collecting personal data from users of its owned websites without having adapted them to the current regulations on data protection and Article 22.2 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), regarding the irregularities detected in the "Cookie Policy" of the website a resolution was issued.

In the context of sanctioning procedure PS/00098/2022, a resolution was issued on April 5, 2022, for voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (recognition of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for failing to respond to the information requests notified in the context of E/02426/2021, for infringement of Article 58.1 of the GDPR.

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b) The connection of the infringer's activity with the processing of personal data.

As stated on its website, "RAMONA FILMS, S.L. is a production company founded in Madrid in 2019; however, it has been creating content for the internet for over 20 years. Its vocations are humor, eroticism, documentaries, series, debates, animation, and personal content."

Consequently, and for the purposes of complying with the legally established requirements, the exercise of this activity necessarily involves knowledge and application of the current regulations regarding personal data protection.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, with respect to the infringement committed, by violating what is established in Article 6.1 of the GDPR, allows for the imposition of a fine of FIFTY THOUSAND EUROS (€50,000).

In accordance with the provisions of Article 85 of the LPACAP and having acknowledged its responsibility within the timeframe granted for the submission of allegations, this fine is subject to a 20% reduction of the total amount.

With the application of this reduction, the fine would be set at FORTY THOUSAND EUROS (€40,000).

VI

Article 13 of the GDPR

Article 13 "Information to be provided when personal data are obtained from the data subject" states that:

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

a) the identity and contact details of the controller and, where applicable, of its representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of the transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent processing of data:

a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;

b) the existence of the right to request from the controller access to personal data relating to the data

subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal; (...).

The privacy policy of the website ***URL.2, as stated in the diligence dated February 17, 2023, contains the following content:

(...).

Article 13.2(c) of the GDPR states, within the information that must be provided when personal data are obtained from the data subject, that "when the processing is based on Article 6(1)(a) or Article 9(2)(a)" it must indicate "the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal."

In this case, the privacy policy indicates that the processing of data is legitimized by the consent of the data subject; that is, in accordance with the provisions of the aforementioned Article 6.1(a) of the GDPR.

On the other hand, as stated in the report of prior actions, there is a contact form for those who wish to work as porn actors in the gay productions of the portal; this form requires acceptance of the privacy policy, activating a checkbox where it indicates that the legitimate basis for the processing of the collected data is the user's own consent. However, among the information collected, there are data that reveal the user's sexual orientation; specifically, the following data is requested verbatim: name, age, email, phone, city, country, gay role (active/passive/versatile), penis size, photo.

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In these cases, the processing is based on Article 9, paragraph 2, letter a) of the GDPR.

However, at no time does the revocation of consent appear in the privacy policy of said website, which constitutes a violation attributable to RAMONA, for the infringement of Article 13 of the GDPR.

VII

Classification of the infringement of Article 13 of the GDPR

The aforementioned infringement of Article 13 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

b) the rights of the data subjects under Articles 12 to 22; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial breach of the articles mentioned therein and, in particular, the following: (...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law. (...)"

VIII

Sanction for the infringement of Article 13 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is appropriate to assess the sanction to be imposed in accordance with the following criteria established in Article 83.3 of the GDPR:

As aggravating factors:

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b) the intentionality or negligence in the infringement;

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In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard, in the terms provided in the (...).

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e) any previous infringement committed by the data controller or processor;

The party being claimed has been previously sanctioned for non-compliance with the GDPR.

In the context of sanctioning procedure PS/00483/2021, a resolution was issued on March 1, 2022, for the voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (acknowledgment of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for the infringement of Article 13 of the General Data Protection Regulation (GDPR), for collecting personal data from users of its owned websites without having adapted them to the current regulations on data protection and Article 22.2 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), regarding the irregularities detected in the "Cookie Policy" of the website a resolution was issued.

In the context of sanctioning procedure PS/00098/2022, a resolution was issued on April 5, 2022, for the voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (acknowledgment of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for failing to respond to information requests notified in the context of E/02426/2021, for infringement of Article 58.1 of the GDPR.

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b) The link between the infringer's activity and the processing of personal data.

As stated on its website, "RAMONA FILMS, S.L. is a production company founded in Madrid in 2019; however, it has been creating content for the internet for over 20 years.

Its vocations are humor, eroticism, documentaries, series, debates, animation, personal content."

Consequently, for the purposes of complying with the legally established requirements, the exercise of this activity necessarily implies knowledge and application of the current regulations on personal data protection.

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The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 13 of the GDPR, allows for the imposition of a fine of €2,000 (TWO THOUSAND EUROS).

In accordance with the provisions of Article 85 of the LPACAP and having acknowledged its responsibility within the time granted for the submission of allegations, this fine is subject to a reduction of 20% of the total amount.

With the application of this reduction, the fine would be set at ONE THOUSAND SIX HUNDRED EUROS (€1,600).

IX

Article 28 of the GDPR

Article 28 "Processor" establishes that

1. When processing is to be carried out on behalf of a controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.
2. The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thus giving the controller the opportunity to object to such changes.
3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:
 - a) shall process the personal data only on documented instructions from the controller, including with regard to transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest;
 - b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;
 - c) shall take all necessary measures in accordance with Article 32;
 - d) shall respect the conditions laid down in paragraphs 2 and 4 for engaging another processor;
 - e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, for the controller to fulfill its obligation to respond to requests for exercising the rights of data subjects laid down in Chapter III;
 - f) shall assist the controller in ensuring compliance with the obligations laid down in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;
 - g) at the choice of the controller, shall delete or return all personal data after the end of the provision of processing services, and shall delete existing copies unless Union or Member State law requires storage of the personal data;
 - h) shall make available to the controller all information necessary to demonstrate compliance with the obligations laid down in this Article, as well as to allow and contribute to audits, including inspections, conducted by the controller or another auditor authorized by the controller.

In relation to the provisions of point h) of the first paragraph, the processor shall immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other Union or Member State data protection provisions. (...)

The file contains the processing agreement signed by "A.A.A., with ID ***NIF.1, as Data Protection Officer of the company RAMONA FILMS S.L.U, with CIF B87763405 and with address at ***DIRECCIÓN.2, hereinafter CONTROLLER" with the hosting provider COMVIVE SERVIDORES SL. The content of this contract does not specify what the processing consists of, appearing a section with a list of possible processing operations along with a checkbox to mark those that correspond in the contract; however, all have been left unmarked.

The types of data affected by the contract and the categories of data subjects are also not specified. It is surprising, regarding the duration of the contract, that it specifies that "this agreement has an indefinite duration. It will be terminated upon the closure of the contract for whatever reason...". It is evident that this contract does not meet the minimum requirements established in the current regulations on data protection.

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On the other hand, it has been established that RAMONA uses the company CCBILL EU Ltd, based in Malta, to manage user subscriptions and act as a payment gateway for content viewing services.

The contract for data processing with CCBILL EU Ltd is not included in the file. According to the report of preliminary actions, this Agency requested the data processing agreement with CCBILL EU Ltd (the company that enables the subscription form for the services of the portal putalocura.com); however, RAMONA responded to the request in the following terms:

- “a. The service contract with the company CCBILL EU Ltd dates back to 2004.
 - b. They selected this provider after verifying that they comply with the current data protection regulations.
 - c. After the entry into force of the GDPR, the data controller RAMONA sent the corresponding contract to CCBILL for signature, but CCBILL itself responded by referring RAMONA to the privacy policy, claiming the impossibility of managing such contracts due to the high number of clients they have.”
- RAMONA assessed the risk of non-compliance in the absence of a contract with CCBILL EU Ltd and considered it low, thus deciding to continue working with CCBILL, even though the data processing agreement required by the GDPR did not exist.

It is considered that the known facts constitute two infringements attributable to RAMONA for violation of Article 28.3 of the GDPR.

X

Classification of the infringement of Article 28.3 of the GDPR

The aforementioned infringement of Article 28.3 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43 (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements,” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Serious Infringements” of the LOPDGDD indicates:

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“According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following shall be considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...)

- k) Entrusting the processing of data to a third party without the prior formalization of a contract or other written legal act with the content required by Article 28.3 of Regulation (EU) 2016/679. (...)”

XI

Sanction for the infringement of Article 28.3 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is necessary to assess the sanction to be imposed according to the following criteria established in Article 83.3 of the GDPR:

As aggravating factors:

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b) the intentionality or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be emphasized that rigor and exquisite care must be taken to comply with the legal provisions in this regard, in the terms provided in the (...).

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e) any prior infringement committed by the controller or the processor;

The party in question has been sanctioned previously for non-compliance with the GDPR.

In the context of sanctioning procedure PS/00483/2021, a resolution was issued on March 1, 2022, terminating the sanctioning procedure voluntarily, as it accepted the two reductions provided for in Article 85 of the LPACAP (acknowledgment of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for the infringement of Article 13 of the General Data Protection Regulation (GDPR), for collecting personal data from users of its owned websites without having adapted them to the current data protection regulations and Article 22.2 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), regarding the irregularities detected in the "Cookie Policy" of the website, a resolution was issued.

In the context of sanctioning procedure PS/00098/2022, a resolution was issued on April 5, 2022, terminating the sanctioning procedure voluntarily, as it accepted

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to the two reductions provided for in Article 85 of the LPACAP (recognition of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for failing to respond to the information requests notified in the context of E/02426/2021, for infringing Article 58.1 of the GDPR.

The assessment of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 28.3 of the GDPR, allows for the following sanctions to be established:

a). - For the infringement committed by the data processing agreement signed with the hosting provider COMVIVE SERVIDORES SL., for not complying with the minimum required content, an initial sanction of €40,000 (FORTY THOUSAND EUROS).

In accordance with the provisions of Article 85 of the LPACAP and having acknowledged its responsibility within the period granted for the submission of allegations, this sanction is subject to a 20% reduction of the total amount.

With the application of this reduction, the sanction would be set at THIRTY-TWO THOUSAND EUROS (€32,000).

b). - For the infringement committed with CCBILL EU Ltd, due to the absence of a data processing agreement with them, an initial sanction of €50,000 (FIFTY THOUSAND EUROS).

In accordance with the provisions of Article 85 of the LPACAP and having acknowledged its responsibility within the period granted for the submission of allegations, this sanction is subject to a 20% reduction of the total amount.

With the application of this reduction, the sanction would be set at FORTY THOUSAND EUROS (€40,000).

XII

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

When the service is directed exclusively to adults, when the data controller self-limits its processing to adults, regarding services that may pose a risk to minors, then, their efforts, derived from their obligations, must also be directed to ensuring that only data of adults is processed.

The processing of personal data of a child as a vulnerable person is a risk, resulting in the case of children, the risks that would affect any group are amplified by their situation of vulnerability, so the dangers per se are greater than if they affect an adult. This implies that, from the risk-based approach, a fundamental pillar of the GDPR, appropriate technical and organizational security measures must be enabled to prevent the materialization of very high risks causing harm to their rights and freedoms. This is the situation we find ourselves in, where RAMONA FILMS, SL states that the content of the website is directed exclusively to adults and that it is mandatory to be of legal age.

The entity decides that the categories of data subjects are limited to adults, so it is responsible for implementing appropriate technical and organizational security measures to ensure that the processing is carried out only concerning adult data subjects. This also entails implementing appropriate technical and organizational measures to ensure that the data of minors is not processed. In the preliminary investigation report, it is indicated that,

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"It is noted that there is an absence of additional controls to verify the age of website visitors, beyond the simple activation by the user of a button indicating that they are of legal age in an informational window to access the website freely."

If we observe the limitations or precautions provided on the website, these are clearly insufficient to restrict access to minors, both directly to the website (unregistered users) and for registering on the website (registered users).

While there are mechanisms to "declare" age, there is none to further verify it, nor any to verify it ab initio, which would indeed constitute an appropriate measure to prevent the materialization of the high risks to the rights and freedoms of minors that are present. Furthermore, the processing must comply with what is decided by the data controller (the obligation to be of legal age) and only data from the categories of interested parties "of legal age" should be processed.

Additionally, in this case, it has been established that the systems or mechanisms for declaring the age of users accessing the web portals for which the data controller was responsible can be easily circumvented.

According to the report of preliminary investigation actions:

"The mechanism used to declare the age of the user accessing is a pop-up window that appears upon accessing the page with a button and the text 'I am over 18 years old - enter putalocura.com'; when the button is pressed by the user, this action is stored in a JavaScript variable called sessionstorage that does not leave the user's device and remains there as long as the browser tab being used is not closed. The data controller states verbatim the following: 'This variable only stores the information provided by the interested party during the user session, not storing any information on the server where the website is hosted. Therefore, each new connection to ***URL.1 requires that this information be provided again'... A way to circumvent this age declaration mechanism has been detected that allows access to the portal's content without declaring the user's majority age..."

"It has been established that a pop-up window is used as a mechanism to obtain the user's declaration of majority age; this window contains a checkbox that gives the option to 'remember the decision' on the user's device..."

"It has been established that a pop-up window is used with an informational text that contains the phrase in English 'By using the site, you acknowledge you are at least 18 years old', and the buttons 'Continue' and 'Exit' through which the user declares to be of legal age..."

Consequently, the mechanisms established by the data controller to declare age are not only ineffective because they do not serve to prevent minors from accessing (verify age), but they also do not function as they can be easily circumvented.

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In conclusion, it is evident that RAMONA did not have reasonable security measures in light of the estimated potential risks, to prevent access to such web portals by minors, the ultimate objective of the data controller since an age declaration checkbox is enabled.

It is considered that the known facts constitute an infringement, attributable to RAMONA, for violation of Article 32 of the GDPR.

XIII

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR which under the heading "General conditions for the imposition of administrative fines" states:

"Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42 and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and will be subject to a limitation period of two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a

level of security adequate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679."

XIV

Sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is appropriate to grade the sanction to be imposed according to the following criteria established in Article 83.3 of the GDPR:

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As aggravating factors:

-

b) the intent or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the individual, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be emphasized that rigor and exquisite care must be taken to comply with the legal provisions in this regard, in the terms provided in the (...).

-

e) any previous infringement committed by the responsible party or the data processor;

The respondent has been previously sanctioned for non-compliance with the GDPR.

In the context of sanctioning procedure PS/00483/2021, a resolution was issued on March 1, 2022, for voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (acknowledgment of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for infringing Article 13 of the General Data Protection Regulation (GDPR), by collecting personal data from users of its owned websites without having adapted them to the current regulations on data protection and Article 22.2 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), regarding the irregularities detected in the "Cookie Policy" of the website a resolution was issued.

In the context of sanctioning procedure PS/00098/2022, a resolution was issued on April 5, 2022, for voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (acknowledgment of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for failing to respond to information requests notified in the context of E/02426/2021, for infringing Article 58.1 of the GDPR.

-

b) The connection of the offender's activity with the processing of personal data.

As stated on its website, "RAMONA FILMS, S.L. is a production company founded in Madrid in 2019; however, it has been creating content for the internet for over 20 years.

Its vocations are humor, eroticism, documentary, series, debates, animation, personal content."

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Consequently, for the purpose of complying with the legally established requirements, the exercise of this activity necessarily implies knowledge and application of the current regulations on personal data protection.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the

LOPDGDD, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, allows for the imposition of a fine of €60,000 (SIXTY THOUSAND EUROS).

In accordance with the provisions of Article 85 of the LPACAP and having acknowledged its responsibility within the time granted for the submission of allegations, this fine is subject to a 20% reduction of the total amount.

With the application of this reduction, the fine would be established at FORTY-EIGHT THOUSAND EUROS (€48,000).

XV

Article 37 of the GDPR

Article 37 "Designation of the Data Protection Officer" establishes:

"1. The controller and the processor shall designate a data protection officer whenever:

(...)

c) the main activities of the controller or the processor consist of the large-scale processing of special categories of data pursuant to Article 9 or personal data relating to criminal convictions and offenses referred to in Article 10."

In this same sense, Article 34 LOPDD "Designation of a Data Protection Officer" establishes that:

"1. Controllers and processors shall designate a data protection officer in the cases provided for in Article 37.1 of Regulation (EU) 2016/679 and, in any case, when it concerns the following entities:

(...)

c) Entities that operate networks and provide electronic communication services in accordance with their specific legislation, when they process personal data on a large scale habitually and systematically.

(...)

3. Controllers and processors shall communicate within ten days to the Spanish Data Protection Agency or, where applicable, to the autonomous data protection authorities, the designations, appointments, and terminations of data protection officers both in cases where they are obliged to designate them and in cases where it is voluntary.

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In the present case and given the activity of RAMONA, it is evident the obligation to designate a Data Protection Officer; furthermore, it is stated, by the assertion of the data controller himself, that he acts as the Data Protection Officer of RAMONA, Mr. A.A.A. (**EMAIL.1).

However, this Data Protection Officer is not registered in the systems of this Agency despite the obligation to communicate it within ten days to this body.

It is considered that the known facts constitute an infringement, attributable to RAMONA, for violation of Article 37 of the GDPR.

XVI

Classification of Article 37 of the GDPR

The aforementioned infringement of Article 37 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43 (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:
v) The failure to comply with the obligation to designate a data protection officer when the appointment is required in accordance with Article 37 of Regulation (EU) 2016/679 and Article 34 of this organic law. (...)”

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XVII

Sanction for the infringement of Article 37 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is appropriate to graduate the sanction to be imposed in accordance with the following criteria established in Article 83.3 of the GDPR:

As aggravating factors:

-

b) the intentionality or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted on the rigor and exquisite care to comply with the legal provisions in this regard, in the terms provided in the (...).

-

e) any previous infringement committed by the controller or the processor;

The requested party has been sanctioned previously for breaches of the GDPR.

In the framework of the sanctioning procedure PS/00483/2021, a resolution was issued on March 1, 2022, for voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (recognition of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for the infringement of Articles 13 of the General Data Protection Regulation (GDPR), for collecting personal data from users of its owned websites without having adapted them to the current regulations on data protection, and 22.2 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), regarding the irregularities detected in the “Cookie Policy” of the website, a resolution was issued.

In the framework of the sanctioning procedure PS/00098/2022, a resolution was issued on April 5, 2022, for voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (recognition of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for not responding to the information requests notified in the framework of E/02426/2021, for infringement of Article 58.1 of the GDPR.

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b) The link of the infringer's activity with the processing of personal data.

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As stated on its website, “RAMONA FILMS, S.L. is a production company founded in Madrid in 2019; however, it has been creating content for the internet for over 20 years. Its vocations are humor,

eroticism, documentary, series, debates, animation, and personal content.”

Consequently, and for the purposes of complying with the legally established requirements, the exercise of this activity necessarily implies knowledge and application of the current regulations regarding the protection of personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 37 of the GDPR, allows for the imposition of a fine of €10,000 (TEN THOUSAND EUROS).

In accordance with the provisions of Article 85 of the LPACAP and having acknowledged its responsibility within the timeframe granted for the submission of allegations, this fine is subject to a reduction of 20% of the total amount.

With the application of this reduction, the fine would be established at EIGHT THOUSAND EUROS (€8,000).

XVIII

Article 38.6 of the GDPR

Article 38 “Position of the Data Protection Officer” establishes:

(...)

6. The Data Protection Officer may perform other functions and tasks. The data controller or processor shall ensure that such functions and tasks do not lead to a conflict of interest.

In this case, there is a contract for processing with the hosting provider COMVIVE SERVIDORES SL, which states verbatim: “In relation to the parties signing the contract, it is specified: ‘On one side, B.B.B., with ID ***NIF.2, as the legal representative of the company Comvive Servidores S.L., with CIF B91315804 and with address at C/ ***DIRECCIÓN.2, hereinafter referred to as the PROCESSOR, and on the other side, A.A.A., with ID ***NIF.1, as Data Protection Officer of the company RAMONA FILMS S.L.U, with CIF B87763405 and with address at ***DIRECCIÓN.1, hereinafter referred to as the CONTROLLER.’”

In view of the processing contract, a clear confusion between the roles of the data controller and the Data Protection Officer is inferred. The Data Protection Officer is acting and signing as the data controller.

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The Data Protection Officer cannot inform, advise, and supervise a processing contract, in the terms of Article 39 of the GDPR, functions specifically assigned to them by the GDPR, and at the same time subscribe to what needs to be informed, advised, and supervised, because it constitutes a conflict of interest, as has occurred in this case.

It is considered that the known facts constitute an infringement, attributable to RAMONA, for violating Article 38.6 of the GDPR.

XIX

Classification of the infringement of Article 38.6 of the GDPR

The aforementioned infringement of Article 38.6 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to €10,000,000 or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43 (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year limitation period: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

w) Failing to enable the effective participation of the Data Protection Officer in all matters related to the protection of personal data, not supporting them or interfering in the performance of their functions.

(...)"

XX

Sanction for the infringement of Article 38.6 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, it is appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.3 of the GDPR:

As aggravating factors:

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b) the intentionality or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, particular emphasis must be placed on the professionalism or lack thereof of the individual, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it is essential to insist on the rigor and exquisite care to comply with the legal provisions in this regard, in the terms provided in the (...).

-

e) any previous infringement committed by the responsible party or the data processor;

The defendant has been previously sanctioned for non-compliance with the GDPR.

In the context of sanctioning procedure PS/00483/2021, a resolution was issued on March 1, 2022, for the voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (acknowledgment of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for the infringement of Article 13 of the General Data Protection Regulation (GDPR), for collecting personal data from users of its owned websites without having adapted them to the current regulations on data protection and Article 22.2 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), regarding the irregularities detected in the "Cookie Policy" of the website, a resolution was issued.

In the context of sanctioning procedure PS/00098/2022, a resolution was issued on April 5, 2022, for the voluntary termination of the sanctioning procedure, accepting the two reductions provided for in Article 85 of the LPACAP (acknowledgment of responsibility and voluntary payment).

RAMONA FILMS, SL was sanctioned for not responding to the information requests notified in the context of E/02426/2021, for infringement of Article 58.1 of the GDPR.

-

b) The connection of the infringer's activity with the processing of personal data.

As stated on its website, "RAMONA FILMS, S.L. is a production company founded in Madrid in 2019; however, it has been creating content for the internet for over 20 years.

Its vocations are humor, eroticism, documentaries, series, debates, animation, and personal content."

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Consequently, for the purpose of complying with the legally established requirements, the exercise of this activity necessarily implies knowledge and application of the current regulations on personal data protection.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 38.6 of the GDPR, allows for the imposition of a sanction of €15,000 (FIFTEEN THOUSAND EUROS).

In accordance with the provisions of Article 85 of the LPACAP and having acknowledged its responsibility within the time frame granted for the submission of allegations, this sanction carries a reduction of 20% of the total amount.

With the application of this reduction, the sanction would be established at TWELVE THOUSAND EUROS (€12,000).

XXI

Cookie Policy

Article 22.2 LSSI

Article 22.2 of the LSSI establishes that:

"Service providers may use storage and data retrieval devices on the terminal equipment of recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data.

When technically possible and effective, the recipient's consent to accept the processing of data may be provided by using the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent strictly necessary, for the provision of a service of the information society expressly requested by the recipient."

Article 22.2 of the LSSI requires that users be provided with clear and complete information about the use of storage and data retrieval devices and, in particular, about the purposes of data processing.

This information must be provided in accordance with the provisions of the GDPR. Therefore, when the use of a cookie involves processing that enables the identification of the user, the data controllers must ensure compliance with the requirements established by the data protection regulations.

However, it is necessary to point out that those cookies necessary for the intercommunication of terminals and the network and those that provide a service expressly requested by the user are exempt from compliance with the obligations established in Article 22.2 of the LSSI.

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In this regard, the GT29, in its Opinion 4/2012, interpreted that among the exempted cookies would be the "User Input Cookies" (those used to fill out forms, or for managing a shopping cart); authentication or user identification cookies (session cookies); user security cookies (those used to detect erroneous and repeated attempts to connect to a website); multimedia player session cookies; session cookies for load balancing; user interface personalization cookies; and some plug-in cookies for exchanging social content.

These cookies would be excluded from the scope of Article 22.2 of the LSSI, and therefore, it would not be necessary to inform or obtain consent for their use.

On the contrary, it will be necessary to inform and obtain the prior consent of the user before the use of any other type of cookies, both first-party and third-party, session or persistent.

□

Regarding the cookie information banner present in the first layer (main page):

The cookie banner in the first layer must include information regarding the identification of the publisher responsible for the website, in case their identifying data is not found in other sections of the

page or their identity cannot be clearly inferred from the site itself. It must also include a generic identification of the purposes of the cookies that will be used and whether they are first-party or also third-party, without the need to identify them in this first layer. Additionally, it must include generic information about the type of data that will be collected and used in case user profiles are created, and it must include information on how the user can accept, configure, and reject the use of cookies, with a warning, if applicable, that if a certain action is taken, it will be understood that the user accepts the use of cookies.

Apart from the generic information about cookies, this banner must have a clearly visible link leading to a second informational layer about the use of cookies. This same link may be used to direct the user to the cookie settings panel, provided that access to the settings panel is direct, meaning that the user does not have to navigate within the second layer to locate it.

☐

Regarding consent for the use of non-essential cookies:

For the use of non-exempt cookies, it will be necessary to obtain the user's consent explicitly. This consent can be obtained by clicking on "accept" or inferring it from an unequivocal action taken by the user that indicates that consent has been unequivocally given. Therefore, mere inactivity of the user, scrolling, or navigating the website will not be considered a clear affirmative action in any circumstance and will not imply the granting of consent by itself. Similarly, access to the second layer if the information is presented in layers, as well as the necessary navigation for the user to manage their preferences regarding cookies in C/ Jorge Juan, 6

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The control panel is also not considered an active conduct from which the acceptance of cookies can be derived.

The existence of "Cookie Walls" is also not permitted, that is, pop-up windows that block content and access to the website, forcing the user to accept the use of cookies in order to access the page and continue browsing.

If the option is to go to a second layer or cookie control panel, the link must take the user directly to that configuration panel. To facilitate selection, in the panel, in addition to a granular cookie management system, two more buttons may be implemented: one to accept all cookies and another to reject them all. If the user saves their choice without having selected any cookies, it will be understood that they have rejected all cookies. In relation to this second possibility, pre-checked boxes in favor of accepting cookies are not admissible under any circumstances.

If for cookie configuration, the website refers to the settings of the browser installed on the terminal equipment, this option could be considered complementary for obtaining consent, but not as the only mechanism. Therefore, if the publisher opts for this option, they must also offer, in any case, a mechanism that allows the rejection of the use of cookies and/or to do so granularly on their own website.

Furthermore, the withdrawal of previously granted consent by the user must be possible at any time.

To this end, the publisher must provide a mechanism that allows the user to easily withdraw consent at any time. It will be considered that such ease exists, for example, when the user has simple and permanent access to the cookie management or configuration system.

If the publisher's cookie management or configuration system does not allow the prevention of the use of third-party cookies once accepted by the user, information will be provided about the tools offered by the browser and third parties, warning that if the user accepts third-party cookies and subsequently wishes to delete them, they must do so from their own browser or the system enabled by third parties for that purpose.

☐

Regarding the information provided in the second layer (Cookie Policy):

The Cookie Policy must provide more detailed information about the characteristics of cookies, including information about the definition and generic function of cookies (what cookies are); about the

type of cookies used and their purpose (what types of cookies are used on the website); the identification of who uses the cookies, that is, whether the information obtained by the cookies is processed only by the publisher and/or also by third parties with identification of the latter; the retention period of the cookies on the terminal equipment; and if applicable, information about data transfers to third countries and the creation of profiles that involve automated decision-making.

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In this case and as stated in the report of prior actions, the following anomalies have been observed:

- Regarding the website ***URL.1 for which RAMONA is responsible for processing:

The data controller RAMONA FILMS SL states and acknowledges that, as of the date of receiving our information request dated September 16, 2022, cookies were being installed for which no information was provided to the user. They also state that cookies were being installed despite the user confirming that they did not wish to install them, using the cookie configuration panel enabled on the portal. They claim that the above was occurring due to a technical error and that it has been immediately corrected, carrying out the relevant tests.

It has been confirmed that two cookies are used to obtain the user's location; these store information about the country and region (for example, Spain/Madrid) of origin without obtaining a precise location of the user. According to the cookie policy, the purpose of these approximate location cookies is to offer the user webcams according to their region. No cookies are used to obtain the user's IP address; however, this data is processed and stored for all users who complete the subscription form for the portal's services.

- Regarding the website ***URL.2 for which the data controller is responsible:

Upon accessing the portal, a pop-up window is displayed to manage the installation of cookies by the user, showing three different categories: technical cookies (always installed), analytical cookies (installed at the user's request), and advertising cookies (installed at the user's request). However, among the cookies that are always installed, there is the cookie "kt_ips" which collects and stores the IP address of the user accessing the portal.

XXII

Classification of the infringement in the Cookie Policy

The aforementioned infringement of Article 22 of the LSSI constitutes the commission of a minor infringement according to the provisions of Article 38.4 of the LSSI:

“g) To use data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2. (...)”

In this regard, Article 39 of the aforementioned law establishes that:

“1. For the commission of the infringements set out in the previous article, the following sanctions will be imposed:

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c) For the commission of minor infractions, a fine of up to 30,000 euros. (...)”

XXIII

Sanction in the Cookie Policy

For the purpose of deciding on the imposition of an administrative fine and its amount, it is necessary to graduate the sanction to be imposed in accordance with the following criteria established in Article 40 of the LSSI:

As aggravating factors:

-

a) The existence of intent.

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard, in the terms provided in the (...). The balance of the circumstances contemplated in Article 40 of the LSSI and Article 39 of the LSSI, with respect to the infraction committed by violating the provisions of Article 22.2 of the LSSI, allows for the imposition of a sanction of 15,000 € (FIFTEEN THOUSAND EUROS).

In accordance with the provisions of Article 85 of the LPACAP and having acknowledged its responsibility within the period granted for the submission of allegations, this sanction carries a reduction of 20% of the total amount.

With the application of this reduction, the sanction would be established at TWELVE THOUSAND EUROS (12,000€).

XXIV

Acknowledgment of Responsibility

In accordance with the provisions of Article 85 of the LPACAP and having acknowledged its responsibility within the period granted for the submission of allegations, the sanctions that should be imposed in the present procedure carry a reduction of 20% of the total amount.

XXV

Adoption of Measures

Article 58.2 of the GDPR establishes the corrective powers of a supervisory authority. Subsection d) of the cited provision establishes that it may consist of “ordering the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

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The text of the resolution establishes what the infractions committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, as these measures must aim to resolve the non-compliance detected by the AEPD, in compliance with the GDPR.

Considering the declared infractions, and in light of the acknowledgment of responsibility declared by RAMONA, without intending to be exhaustive, it is appropriate to impose on it, among others, in accordance with the provisions of Article 58.2.d) of the GDPR, the measures consisting of:

- Notification to this AEPD of the appointment of the Data Protection Officer of the entity.
- Adjustment of the content of the data processing agreement signed with the hosting provider COMVIVE SERVIDORES SL. to data protection regulations.
- Subscription of a data processing agreement with the company CCBILL EU Ltd in accordance with the provisions of data protection regulations.
- Adjustment of the privacy policy to current data protection regulations.
- Adjustment of the cookie policy to applicable current regulations.
- Establishment of appropriate security measures to adapt the systems or mechanisms for age verification to legal requirements.
- Accreditation of the enabling of an acceptance checkbox that the user must accept, with a link to the privacy policy.

Regarding the last issue, a simple reading of the administrative resolution shows that, in relation to the mechanisms implemented by RAMONA to access its websites, these allow access to the portal's contents and the processing of personal data without effectively verifying the user's age, since access

is granted simply by declaring the age through a pop-up window that appears when accessing the page, by pressing a button with the text "I am over 18 years old."

The mechanisms established by the data controller only serve to declare the age and are not only ineffective because they do not prevent minors from accessing (verifying age) and having their personal data processed, but they also do not function as they can be easily circumvented.

And all this without prejudice to the fact that the type of procedures, mechanisms, or specific instruments to implement them corresponds to the sanctioned party, as it is the data controller who fully understands the organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

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RAMONA informed this Spanish Agency for Data Protection, in the same document in which it acknowledged its responsibility, that they were in the process of making the requested changes, but that, for the effective implementation of all of them, especially considering the dates we were in, they would need a few additional weeks.

Specifically, the difficulties encountered in integrating the solutions developed by third parties for age verification were estimated to require 8 to 10 weeks.

However, at no time has the implementation of these changes been evidenced nor has their correct implementation been reported to the AEPD, which is why the measures in this resolution are imposed.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on RAMONA FILMS, S.L., with NIF B87763405,

- For the infringement of article 6.1.a) of the GDPR, classified in article 83.5 of said regulation, an administrative fine of 40,000.00 euros.

- For the infringement of article 13 of the GDPR, classified in article 83.5 of said regulation, an administrative fine of 1,600.00 euros.

- For the infringement of article 28.3 of the GDPR, classified in article 83.4 of said regulation, for not complying with the minimum content required in the data processing agreement signed with the hosting provider COMVIVE SERVIDORES SL, an administrative fine of 32,000.00 euros.

- For the infringement of article 28.3 of the GDPR, classified in article 83.4 of said regulation, for the absence of a data processing agreement with CCBILL EU Ltd, an administrative fine of 40,000.00 euros.

- For the infringement of article 32 of the GDPR, classified in article 83.4 of said regulation, an administrative fine of 48,000.00 euros.

- For the infringement of article 37 of the GDPR, classified in article 83.4 of said regulation, an administrative fine of 8,000.00 euros.

- For the infringement of article 38.6 of the GDPR, classified in article 83.4 of said regulation, an administrative fine of 12,000.00 euros.

- For the infringement of article 22.2 of the LSSI, classified in article 38.4.g) of said regulation, an administrative fine of 12,000.00 euros.

SECOND: TO ORDER RAMONA FILMS, S.L., with NIF B87763405, that pursuant to article 58.2.d) of the GDPR, within one month, report on:

- Appointment of the Data Protection Officer of the entity.

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- Content of the data processing agreement signed with the hosting provider COMVIVE SERVIDORES SL in accordance with data protection regulations.
- Data processing agreement signed with the company CCBILL EU Ltd in accordance with the provisions of data protection regulations.
- Adaptation of the privacy policy to current data protection regulations.
- Adaptation of the cookie policy to applicable current regulations.
- Establishment of appropriate security measures to adapt the systems or age verification mechanisms to legal requirements.
- Accreditation of the enabling of an acceptance checkbox that the user must accept, with a link to the privacy policy.

THIRD: NOTIFY this resolution to RAMONA FILMS, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the enforceability date falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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